

Dayal Singh Kushwaha v. State of U.P.

Allahabad High Court · Division Bench · 30 November 2016 · Writ-C No. 56689 of 2016 · **Writ disposed of; petitioner relegated to Section 127 appeal.**

HEADNOTE

Once the Executive Engineer has made a final assessment, the consumer's remedy is the statutory appeal under Section 127 of the Electricity Act, 2003, read with the Electricity Supply Code, 2005, and the High Court will not interfere in writ jurisdiction.

FACTUAL SUMMARY

Dayal Singh Kushwaha filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others in an electricity-supply dispute. When the matter was listed, counsel for the respondents produced an order dated 21 November 2016 by which the Executive Engineer had already completed the final assessment, and a copy was handed to the petitioner's counsel. The Court then considered whether the writ should proceed in the face of that completed assessment.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

alternate-remedy-section-127-appeal-bars-writ

HOLDING

Once a final assessment has been made by the Executive Engineer, a statutory alternative remedy of appeal is available under Section 127 of the Electricity Act, 2003, read with the Electricity Supply Code, 2005, and the High Court will not interfere in writ jurisdiction. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

Once the Executive Engineer has made a final assessment, the consumer's remedy is the statutory appeal under Section 127 of the Electricity Act, 2003, read with the Electricity Supply Code, 2005, and the High Court will not interfere in writ jurisdiction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE EXECUTIVE ENGINEER'S FINAL ASSESSMENT DATED 21.11.2016

Left to the statutory appeal under Section 127. ¶ 1